

Midterm Answer Key & Model Essay Answer

The following is the answer key for the multiple-choice questions, with explanations, followed by a model answer for the essay question. As I said in class this week, I was impressed and pleased with the quality of work across the board.

Statistically, multiple-choice scores had an average of 17.8 and a median of 18. Essay scores had an average of 13.6 and a median of 13.5, with a relatively even distribution of scores above and below those numbers. And total scores had an average of 31.4 and a median of 32, with a relatively even distribution of scores above and below that number.

Because the total points only amounted to 40, the curve would be more compressed than on a longer exam with more total points, so I will not rigorously apply the 1L curve to suggest an exact letter-grade breakdown. But the higher into the 30s that a score is, the more likely it would receive an A or A-, while the mid-20s-ish to around the average score of 31.4 would be in the B and B+ range (our 1L curve requires an average for the class of between a 3.20 and 3.40 grade). Remember as well that the midterm itself counts for 10% of the final grade, so a lower score than you hoped for on the midterm does not in any way mean that you can't get a very good final grade—and conversely, a very strong showing on the midterm does not guarantee a high final grade. So use this experience to inform your future studying and preparation for the final, keep working, and focus ahead.

Multiple Choice (2 points per question, 20 points total)

1. D

The defense that the Defendant seeks to raise is that the complaint is not legally sufficient, because there is no tort of intentional infliction of emotional distress in the relevant state law. The Defendant can raise that argument that the complaint is not legally sufficient in a 12(b)(6) motion to dismiss for failure to state a claim.

2. B

As a constitutional matter, it's ok to have a 6-member jury. And under the FRCP, Rule 48(a), a 6-member jury is also enough. But Rule 48(b) requires unanimity for a jury verdict, unless the parties stipulate otherwise.

3. B

A 12(b)(5) motion asks whether the service of process was sufficient. Generally, a party is allowed to try to serve process in this manner, per Rule 4(e)(2)(B). However, a 5-year-old is almost certainly not someone "of suitable age and discretion" under 4(e)(2)(B), so this service of process was likely insufficient under the FRCP.

4. A

The Complaint looks plausible: There is a factual allegation that Pat is over 40, so if we assume that fact is true, it would meet prong (a) of the legal test. There is also a factual allegation that Pat has 25 years of experience, which, if true, is sufficient to draw an inference that Pat was qualified for the job, meeting prong (b) of the test. As for prong (c), there is a factual allegation that Deb only worked for 10 years as a pilot, and that, if true, would make it plausible that Deb is no more qualified than Pat is. Similarly, given the alleged 5-year gap in when they each graduated from college, it is at least plausible that Deb is younger than Pat.

5. C

The drink formula isn't a matter of legal advice or preparation for litigation, so it is not shielded by either work product protection or attorney-client privilege. And it certainly seems relevant to the claims in the case, in order to determine whether the drink contains the right kind of syrup under the contract, so they can't object on the grounds of irrelevance. There are no facts to suggest that the formula is being sought for an improper purpose. But, under Rule 26(c)(1)(G), Drinks Co. can seek a protective order to limit the revelations of its trade secrets.

6. D

There is a genuine dispute of material fact about who was driving: In their depositions, Plaintiff says Defendant was driving, while Defendant says they weren't driving. Therefore, Defendant can't win summary judgment based on not being the driver who caused the crash. However, the Complaint only alleged that the crash was "early in the year." And during discovery, the Defendant produced evidence showing that the crash happened on January 15, 2023, which is more than two years (the statute of limitations period) before the Complaint was filed on February 5, 2025. In response, Plaintiff produced no evidence to show that the crash occurred later than January 15, 2023. So based on this evidence, the only reasonable conclusion is that the crash happened on January 15, 2023, more than two years before the lawsuit was filed, meaning that this suit is time-barred by the statute of limitations.

7. E

Generally, § 1291 requires a "final" order to appeal, and the usual scenario for such finality is a judgment on the merits that leaves nothing for the trial court to do. We don't have that here—the Plaintiff has been ordered to refile the Complaint, so there is still the whole case left to litigate! However, the collateral order doctrine provides

a more expansive definition of what counts as “final.” So we need to apply the three-part collateral order test. Applying that test: (1) The decision is conclusive, because it can’t be re-decided by the District Court once the complaint is refiled; there is no sense that the District Court is still figuring out whether to allow anonymity, so the court has conclusively decided this question. (2) This issue, about anonymity, is separate from the merits, because the merits of the case relate to an intentional tort, not to anonymity. So the appeals court can decide the anonymity issue without having to weigh in on the merits of the case. And this issue is important insofar as the party clearly has some reason for thinking anonymity is valuable in this context—indeed, anytime a party seeks anonymity, they clearly think there is some important reason for it, so motions seeking to proceed anonymously raise important questions as a general matter. (3) And this order is unreviewable on final appeal at the end of the case, because once the Plaintiff’s name is in the public record, the appeals court can’t go back in time and erase that from public memory—we say that the appeals court can’t “un-ring that bell.” Therefore, this order should be appealable immediately under the collateral order doctrine.

8. B

The Answer was untimely. Per Rule 12(a)(4)(A), if a defendant files a 12(b)(6) motion to dismiss, and if the court then denies that motion, the defendant’s “responsive pleading must be served within 14 days after notice of the court’s action.” Here it was 30 days, and so the Answer was late.

9. A

This is a new statute—it was not around in 1791. But even new statutory causes of action can still fit within the Seventh Amendment jury right. We use the two-prong test. (1) This is an intentional tort claim, so it is relatively likely to have a common-law tort analogue (indeed, it is directly tied to state tort law). (2) And it is a suit for money damages, which is a common-law remedy (and the remedy is the most important prong of the test). So there is most likely a Seventh Amendment jury-trial right for suits under this statute.

10. D

The Answer was served 10 days ago. Rule 15(a)(1)(A) provides that “a party may amend its pleading once as a matter of course within 21 days after serving it.” The 10 days that elapsed here are within that 21-day period. So the Defendant is allowed to amend their Answer as a matter of course, without having to ask the court or the

adverse party for leave to do so. Therefore, Defendant's lawyer should simply amend and refile the Answer, adding in the proper defense.

Essay Question (20 points total)

[This model answer is ~790 words, and it would score well out of the possible 20 points. Remember, though, that I have also thought a lot about this fact pattern, so I by no means expect that any student answer, especially when produced in just half an hour, would be quite as thorough, or as efficient with the word count, as this model answer.]

In addition, there is no such thing as a 'perfect' answer, and essays could score well by reaching different conclusions for each of the three defendants than I do in this model answer. The question for me, as I'm grading, is always how well-reasoned an argument is, based on the facts and the law, so arguments I disagree with can still score very well.

Finally, two big-picture stylistic points: It's useful to have subheadings, to help the reader follow your arguments. And lawyers like short paragraphs, so it's perfectly fine to write in a very pointed way—though of course not so staccato that it feels stilted!]

The issue is whether notice was constitutionally sufficient for Ana, Bella, and Cora.

This case is in O'Quinn state court. In state court, the Fourteenth Amendment Due Process Clause gives parties a right to notice. A party does not have to receive actual notice. Instead, notice must be reasonably calculated, in all the circumstances, to inform interested parties of the case with sufficient time to participate.

To judge what is reasonable, courts consider feasible alternatives and supplements, and if there was a superior and cost-effective way to provide notice, it should be used. Further, if the party providing notice reasonably should have known that it failed, it is unreasonable not to try again, if there is another feasible way. Personal service in writing is the gold standard. But depending on the circumstances, the Supreme Court has also found that certified mail, regular mail, and posting at a residence can be reasonable.

Taking the defendants in order:

Ana

Ana received sufficient notice.

To begin with, Ana did not receive the certified mail, because Maisie stole it, so Ana did not have actual notice.

However, the notice that Lola provided was reasonable in these circumstances. Certified mail is a secure way to send letters, and Lola got a receipt showing that the letter was delivered. Admittedly, the signature on the receipt was illegible. But lots of people's signatures are illegible. So it was reasonable for Lola to assume that it was Ana's signature.

The wrinkle is that Lola's cover letter requested that Ana acknowledge receipt by contacting Lola to discuss settlement. And Ana never contacted Lola. That should have suggested to Lola that maybe Ana never got the letter. However, it would also have been reasonable for Lola to think that Ana simply didn't want to settle—plenty of people don't settle their cases! So although it's unreasonable not to try notice again when you know that it failed, Lola did not know that the notice to Ana failed. Moreover, Lola also announced the case publicly at the town council meeting—that isn't enough by itself, because it wouldn't be reasonable to assume the whole town would be there, but it did provide some supplemental notice.

Overall, because Lola received a signed receipt for the certified mail and supplemented with the town council announcement, the notice to Ana was sufficient. And it was provided well before the court date, so would give plenty of time to prepare for court.

Bella

Bella did not receive sufficient notice.

Lola's first letter to Bella, by certified mail, was returned as undeliverable, so Lola needed to take reasonable additional steps to notify Bella.

Lola did find an address on the internet associated with Bella, and sent a letter there by regular mail. That's a good step. But an internet search isn't necessarily reliable. And, notably, Bella never acknowledged receipt of the materials by contacting Lola to discuss settlement, as Lola requested in the letter. That should have suggested to Lola that Bella might not have gotten the letter.

Lola therefore should have taken additional feasible, relatively affordable steps, such as also sending the materials by regular mail to Bella's old house; posting notice at both of Bella's houses; and trying to serve Bella personally at both houses. Those steps seem reasonable in a case about a 1-acre lot, which is a decently large piece of property.

The fact that Lola announced the case at the town council meeting doesn't fix the problem. The odds that someone will be at a local town council meeting are low, so it was not a particularly effective way to notify Bella.

Consequently, Bella did not receive sufficient notice ahead of the court date.

Cora

Cora received sufficient notice.

It's a close call whether the letter alone would have been sufficient. It was sent by regular mail, not certified mail, so Lola never got a receipt to confirm it was delivered. And Cora never contacted Lola to discuss settlement, as Lola's letter requested, which could suggest that Cora never got the letter.

Nevertheless, Cora received actual notice of the lawsuit, in person, because Lola announced it at the town council meeting and Cora shouted in response, "I'll see you in court!" That notice also occurred with plenty of time before the court date: it was on September 12, and the court hearing was December 1. Because Lola literally watched Cora receive notice about the details of the lawsuit at the meeting, and Lola also had mailed everything to Cora a few days before, it was reasonable for Lola to think that Cora had been notified about the case.

Cora therefore received sufficient notice.

Conclusion

For these reasons, notice was constitutionally sufficient for Ana and Cora. But notice was constitutionally insufficient for Bella.